

ORDER SHEET
IN THE LAHORE HIGH COURT LAHORE.
JUDICIAL DEPARTMENT

W.P. No. 24539 of 2026

Judicial Activism Panel **Versus** Pakistan through Secretary Energy
and 24 others

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1)	28.04.2026.	M/s. Muhammad Azhar Saddique, Salma Riaz and Amna Liaqat, Advocates for the petitioner. Mr. Asad Ali Bajwa, Deputy Attorney General for Pakistan Mr. Imran Khan, Assistant Advocate General, Punjab
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Through this Constitutional Petition, filed under Article 199 of the Constitution of Islamic Republic of Pakistan (“**Constitution**”), the petitioner seeks the issuance of a writ of *mandamus* in terms of Article 199(1)(a)(i), against Federation of Pakistan, Province of Punjab, various statutory instrumentalities, regulators i.e. *National Electric Power Regulatory Authority* (“**NEPRA**”), *Oil and Gas Regulatory Authority* (“**OGRA**”) and many others, including the Distribution/Transmission/Generation Companies i.e. **DISCOs, NTDC, CPPAG, GENCOs, SNGPL**, various Divisions and Ministries of the Federal Government and Provincial Departments. In addition, the petitioner has also impleaded ‘*All Divisional Commissioners Punjab*’ and ‘*All Deputy Commissioners, Punjab*’ as respondents in the array of respondents.

2. Since the learned law officers have raised the question of maintainability of this Constitutional Petition, therefore, learned counsel for the petitioner

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was confronted to assist this Court as to the maintainability of the Constitutional Petition in hand as facts and grounds raised through this Petition are vague, unspecific and generic in nature. The attention of the learned counsel was specifically invited to pages 18 to 24 [grounds (v) to (xvii)] of the Petition, whereby, an attempt has been made to cast a net by making unspecific, unsubstantiated and vague assertions *qua* the legal, technical and complicated issues of tariff determinations, line losses, operational performance of the DISCOs, issues of sovereign financing, appointments in State Owned Enterprises/ Companies, Electricity and Gas Prices etc., however, not an iota of detail and grounds have been adumbrated in this respect, which may warrant interference while exercising jurisdiction under Article 199 of the Constitution.

3. In response, learned counsel for the petitioner contends that the Constitutional Petition is in the nature of a Public Interest Litigation (“**PIL**”) and the issues agitated through the Constitutional Petition in hand are of acute public and national importance, involving the rights of masses; contends that the respondents have consistently failed to arrest the systematic deprivation of public at large *qua* devising and implementing sustainable, transparent and legally sound policies, which inactions and alleged lackluster approach has aggravated the energy crisis, causing immense hardship for the public at large, therefore, per learned counsel, invoking the ordinary remedies before the regulators i.e. NEPRA, OGRA etc. under the

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Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997 (“NEPRA Act”) and Oil and Gas Regulatory Authority Ordinance, 2002 (“OGRA Ordinance”) is neither adequate nor inexpensive or expeditious; learned counsel for the petitioner, while relying upon Articles 4, 5, 9, 14, 25 and 37 of the Constitution, contends that since the respondents have failed to ensure the due process of law in operations and working of the respondents, which conduct, actions/inactions, per learned counsel, tantamount to infringement of fundamental right of life in terms of Article 9 of the Constitution, therefore, the extraordinary equitable remedy of judicial review under Article 199 of the Constitution has been invoked. Reliance has further been placed upon *Benazir Bhutto v. President of Pakistan* (PLD 1998 SC 388), *Arshad Mehmood v. Government of Punjab through Secretary, Transport Civil Secretariat, Lahore* (PLD 2005 SC 193), *Mushtaq Ahmad Mohal v. Honourable Lahore High Court, Lahore* (1997 SCMR 1043), *Liaqat Hussain v. Federation of Pakistan* (PLD 1999 SC 504), *Alleged Corruption in Rental Power Plants etc.: In the matter of Human Rights Cases Nos.7734-G/2009, 1003-G/2010, and 56712 of 2010, decided on 30th March, 2012.* (2012 SCMR 773), *Shehla Zia v. WAPDA* (PLD 1994 SC 693). It is further argued that since the respondent State functionaries have allegedly failed to perform their duties in their respective jurisdictional spheres in accordance with the mandate of law and Constitution, which conduct has correspondingly

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caused social, economic and public disorder, therefore, per learned counsel, it is high time to arrest all such failures by issuing an appropriate writ of *mandamus*, as prayed for.

4. Arguments heard. Record perused.

5. At the outset, it is noted that in an attempt to embroil all possible authorities, departments, divisions, SOE/companies working as public sector instrumentalities, innumerable respondents have been impleaded in this Constitutional Petition and the Petitioner has done his best to make out a case, *albeit* without any perceptible cogent reasons, for issuance of notices in the nature of a fishing and roving inquiry, which is neither the mandate of the extraordinary remedy of judicial review under Article 199 of the Constitution nor any undisputed material, details or documents have been placed on record on the basis whereof this Court may embark upon to delve into these policy matters of intricate, financial, technical, systematic details and workings, such as the element of generation, procurement and distribution of Gas, Electricity, Petroleum Products e.g. Fuel(s), LNG, LPG etc. As argued by learned counsel for the petitioner, the issuance of a writ of *mandamus* for uninterrupted supply of Gas and Electricity to certain segments of the society, be it schools, hospitals, Courts etc., is in accordance with the constitutional mandate and jurisdiction of this Court. After detailed scrutiny of the contents of the Constitutional Petition, I am of the opinion that the Petitioner has agitated grounds which

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have been raised in a sweeping and all-encompassing manner, thus, the same cannot be given any countenance to invoke the jurisdiction under Article 199 of the Constitution. The contentions raised on the touchstone of alleged unjust enrichment, breach of statutory duty and constitutional violations by the respondents are in the nature of vague audacious hyperbole without any sustainable undisputed facts and details. PIL is a weapon which has to be used with great care, caution and circumspection and judiciary has to be extremely careful to see that behind the beautiful veil of public interest an ugly private malice, vested interest and/or publicity seeking is not lurking. High Court has the duty to discourage such petitions to ensure that the course of justice was not polluted or obstructed in such manner.¹

6. The perusal of the prayer clause would reflect that the relief claimed or directions sought to be issued through the instant Constitutional Petition relate to separate and special laws on the subject and the said special laws have complete code, regulatory and implementation mechanisms, remedies available under the special laws, *quasi-judicial* forums being created and continue to exist, which forums may be approached in accordance with law, for agitating or addressing the purported issues sought to be raised by virtue of the Constitution Petition in hand. This Court is of the opinion that Judicial review of pricing,

¹ “*Dr. Akhtar Hasan Khan v Federation of Pakistan*” (2012 SCMR 455); “*Dr. Muhammad Tahir-Ul-Qadri v. Federation of Pakistan*” (PLD 2013 SC 413) “*Ashoke Kumar Pandey v. State of West Bengal*” (AIR 2004 SC 280); *7C’s Corporate Services v. Oil and Gas Development Company Limited and others*” (PLD 2017 Islamabad 115)

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procurement and regulating the regulators would involve lengthy, complicated proceedings, which are better left for and appropriately addressed by the specialized fora. An exercise of jurisdiction which will ultimately be rooted in the pursuit of this Court in the matters relating to price control, procurement oversight and regulatory framework of electricity, gas and petroleum products will be a form of State intervention and this Court is not inclined to such an idea. By now, it is an irrefutable fact that such unbridled and rampant interventions and pursuits have already and would indeed result into national and international losses for this Country, the details whereof are now a matter of public domain and are thus, not required to be encapsulated herein as this would unnecessarily burden this order. This Court is conscious of various pronouncements of Supreme Court of Pakistan, whereby, while enunciating the law on the subject, it has been held that though the determination of the prices and regulating the necessary commodities e.g. gas, electricity, petroleum products is an executive function, which falls within the jurisdiction and domain of the Executive and State agencies, however, the Courts can still intervene to review the manner in which the Executive exercised its power, for ensuring that the fundamental rights of the citizens were protected. Nonetheless, it is equally well settled that the scope and contours of judicial review jurisdiction of this Court under Article 199 of the Constitution, as compared to the jurisdiction then exercised by the Supreme Court of Pakistan under Article 184(3) of the

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Constitution is starkly different in its genesis and preconditions. It is trite that the Courts must follow the principles of judicial restraints in the matters pertaining to the Government/Executive Policies and the only exception to the said settled principles of law is entrenched in the concept of protection of fundamental rights, where an aggrieved person has approached the Court. Considering the same principles, I have carefully perused the contents of the Petition in hand and the only conclusion which emerges is to the effect that no such case for interference is made out. Needless to observe that this does not mean that the petitioners cannot be allowed to institute the constitutional petitions which clearly fall within the well-established contours of PIL as the scope and Pre-requisites are well defined; a petitioner in PIL must in first place demonstrate its complete *bona fide*; it must show that such litigation is not undertaken to serve a private vested interest and is rather aimed at serving the public interest and most importantly, the facts asserted are duly substantiated and verifiable. In the case of Muhammad Shafique Khan Sawati² Supreme Court of Pakistan observed that speculative, hypothetical or malicious attack that blocked or suspended performance of the executive function, cannot be entertained under the guise of PIL. While laying down rules of strict guidance to weed out the cases where litigants use the brand name of PIL to hunt for headlines, the Supreme Court has lately discouraged

² “Muhammad Shafique Khan Sawati v. Federation of Pakistan through Ministry of Water and Power and others” (2015 SCMR 851)

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the misuse of the PIL. Thus, it is high time to segregate as to which of these (PIL) petitions are merely purported or dubbed as PIL but have actually been filed with other ideas, and that too without availing the available alternate remedies.

7. This Court cannot sit as a regulator on the issues raised nor it is an appellate forum since it is well settled that the Courts are not equipped or have the capacity to deal with and delve into the questions of intricate technicalities, particularly in the fields which relates to technical and financial niceties of policy domain of the Executive. The delineations of scope of interference are well defined and it is settled that for the interference with recommendation or opinion of expert body(s), the normal rule is that the Court shall not interfere unless it finds that the exercise of discretion has been arbitrary or against the statutory provisions³, thus, the operations of an expert body should not be lightly interfered with by the Courts⁴ as Court cannot substitute its own views.⁵ It is equally well settled that the expert decisions made by specialized government bodies cannot be interfered as a normal course because the Courts are not possessed with expertise in the relevant domain, therefore, the maximum departmental deference is required to be extended to the departmental workings and expert decision

³ *The Dental Council of India v. Subharti K.K.B. charitable Trust and another* (AIR 2001 SC 2151)
⁴ *Union of India (UOI) and others vs Shah Goverdhan L. Kabra Teachers College* (AIR 2002 SC 3675 @10423)
⁵ *Chairman, J & K State Board of Education vs Feyaz Ahmed Malik and Others* (AIR 2000 SC 1039) @10423; *National Engineering Services Pakistan [NESPAK] Pvt. Ltd. and others v. Kamil khan Mumtaz & others*” (2018 SCMR 211)

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makings/opinions, unless it is established beyond reasonable doubt that the exercise of jurisdiction by the specialized department and experts is marred with *mala fide* or lack of jurisdiction. The test of permissibility of interference is more stringent in cases where this Court exercises appellate or revisional jurisdiction under the relevant statutes as it is well settled that where High Court itself is the repository of ultimate Appellate, Revisional or Referral powers conferred by the relevant statutes, it is rare for the High Court to entertain a Constitutional Petition(s). Section 21 of NEPRA Act sets out the explicit duties and responsibilities of DISCOs and other licensees under the NEPRA regime to ensure safe and reliable services, it requires that a licensee [DISCOs/GENCOs] must maintain an efficient system, supply electricity according to regulations, meet reasonable demand, provide a non-discriminatory access and comply with safety standards; Section 34 of NEPRA Act mandates specification of performance standards for DISCOs to encourage safe, efficient and reliable service. This includes standards for voltage & stability, scheduled/unscheduled outages, time to connect new customers, and load shedding principles/priorities. Likewise, Section 35 of NEPRA Act specifies Industry Standards & Codes of Conduct safety, reliability, cost effectiveness, including technical standards for construction, grid operation & maintenance, operating procedures, maintenance schedules, equipment specs, and load shedding/restoration procedures. Similarly, identical provisions are available under OGRA

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Ordinance⁶, whereby, OGRA has exclusive power and authority to grant, amend and revoke regulated activities and enforce compliance of license conditions to promote efficiency, cost effectiveness, best practices, high safety and service standards. The Petitioner has failed to approach NEPRA or OGRA, before preposterously alleging violations through the Petition in hand in an attempt to make out a case of interference. It is of note that the petitioner has claimed by supplying a certificate at the foot of the Petition that it has already availed the alternate remedy under the law. Unfortunately, this certificate is false as no such remedy has been availed by the petitioner and the Petition merits dismissal on this ground alone. The reference may further be made to Section 12 of the OGRA Ordinance and Section 12G (6) of the NEPRA Act, respectively as these provisions relate to appeals, which may be filed before High Court against a decision of the Regulator(s)/Tribunals constituted under the relevant statute, if the person approaching such Regulators/Tribunals still feels aggrieved. In a nub, the perusal of the provisions contained in these special enactments *i.e.* OGRA Ordinance and NEPRA Act would reveal that the regulators mandate performance and technical standards, back it with monitoring and compliance regulations and non-compliances can trigger fines, public orders and directives to correct practices., if any provision or mandate of these special statutes is violated.

⁶ See Section 6 of OGRA Ordinance.

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8. It is well settled that this Court cannot take cognizance of such issues at the asking of a petitioner, which petitioner has not approached the available special forums under special and general laws for redressing the purported grievance, if any. The Supreme Court of Pakistan, while enunciating the law on the subject has authoritatively held in the case of **PESCO v. SS Polypropylene**⁷ that: *Without availing / exhausting remedies available under the Law, a party cannot directly invoke the Constitutional jurisdiction of High Court under Article 199, more so in highly technical matters including those relating to determination of tariff. It was further held that: High Court should not have arbitrarily interfered in a policy matter which it should have been reluctant to interfere considering that such matters concern complex factors which have a direct impact on the economy of the country. It is not responsibility of the courts to regulate economic policy. Responsibility is limited to legal interpretations. The Courts are expected to enforce fundamental rights reasonably and not in the manner which creates hurdles and unnecessary complications – self-restraint. Courts must not encroach upon the jurisdiction of the executive unless there is a violation of fundamental rights or the executive branch overstepped its legal and constitutional limits.*

9. This is not the first petition on the subject as there are multiple other Constitutional Petitions filed by the same petitioner or another petitioner ‘Munir

⁷ “PESCO v. SS Polypropylene” (PLD 2023 SC 316)

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Ahmed’. This Court is seized of many such petitions and a detailed scrutiny thereof would lead to an ineluctable conclusion that most of these petitions are deplete of multiplicity of challenges and are an emblem of repetitive grounds.

10. In order to reflect as to relief being claimed and the maintainability/merits of such cause, each prayer clauses is being dealt with in the following paragraphs.

***Prayer Clause ‘A’.** Declare that the persistent, arbitrary, unannounced, discriminatory and unscheduled loadshedding of electricity and shortage of gas across Punjab, and the absence of a transparent, rational, and published load-management regime, is illegal, unconstitutional, without lawful authority, and in violation of the fundamental rights guaranteed under Articles 2A, 4, 9, 14, 18, 25, 37 and 38 of the Constitution of the Islamic Republic of Pakistan, 1973, as well as Pakistan’s binding international obligations under the UDHR, ICCPR, ICESCR, CEDAW, UNCRC, the Paris Agreement, UNGPs on Business and Human Rights, UNGA Resolution 76/300, HRC Resolution 48/13, UN SDG 7, and the Maastricht Principles;*

11. There are about five Distribution Companies i.e. GEPCO, FESCO, MEPCO, LESCO & IESCO, operating in the Province of Punjab in their respective territorial jurisdictions but, as evident, it has sweepingly been prayed that a declaration may be issued to the effect that the load shedding is not only persistent but also arbitrary and unannounced. Not a shred of details or evidence has been supplied in the Constitutional Petition in hand for specifying or substantiating that which of these Distribution Companies are conducting the unscheduled load shedding. Similarly, there are no grounds available in the Petition which may trigger the invocation of remedy of judicial review under Article 199 of the

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Constitution for a declaration or direction, as prayed for through the above prayer clause. As per the provisions contained in the NEPRA Act, certain performance standards have been set down by the authority for the DISCOs with an aim to ensure that the Distribution Companies must dispense their services in efficient and reliable manner. These standards include various policy standards such as service characteristics of voltage and stability, scheduled and unscheduled outages, reserve margins, where applicable, and the principles and priorities of load shedding.⁸ Apart from these performance standards, certain industry standards and codes of conduct have also been enumerated in the NEPRA Act.⁹ Thus, if the petitioner has any complaint against the alleged unscheduled load shedding, the only course available for the petitioner was to lodge a complaint before NEPRA.¹⁰ Similarly, *para materia* provisions are also available in the OGRA Ordinance for laying a complaint against the service standards of SNGPL but no such remedy has been availed by the petitioner, before filing the Constitutional Petition in hand.

Prayer Clause ‘B’. *Direct the Respondents to ensure, on priority and without interruption, the supply of electricity and gas to all courts, tribunals, judicial complexes, hospitals, dispensaries, emergency centres, neonatal and intensive-care units, water-supply and sanitation installations, police stations, rescue and fire services, educational institutions, and other essential public institutions throughout Punjab, and to ensure a fair, transparent and non-discriminatory supply of gas to domestic consumers, bakeries, small businesses,*

⁸ See Section 34 of NEPRA Act
⁹ See Section 35 of the NEPRA Act
¹⁰ See Section 27A of the NEPRA Act

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commercial users and industries particularly during morning and evening peak hours;

12. The above part of the prayer clause is also an off-shoot of Prayer Clause ‘A’. Whilst may be true that the preferential treatment is required to be given to the institutions mentioned in this prayer clause, however, there is no material or data placed on record by the petitioner that these institutions have not been preferentially treated within the parameters of policy and resources available at the disposal of the distribution companies and other respondents.

***Prayer Clause ‘C’.** Direct the Respondents to place on record, within such time as this Honourable Court may fix, the complete policy, criteria, mechanism and published schedule for electricity load management and gas distribution, including area-wise and feeder-wise schedules, demand and supply position, shortfall data, plant-wise generation cost, idle capacity, dispatch order, fuel source, system losses, theft control measures, reasons for non-utilisation of cheaper available capacity, and the concrete steps being taken to overcome the present crisis;*

***Prayer Clause ‘D’.** Direct the Respondents to formulate, notify and implement a transparent, time-bound and comprehensive least-cost national generation and fuel-mix policy, including strict merit-order dispatch of economical plants, independent technical, financial and environmental audit of high-cost, obsolete or underperforming generation units for their closure, retirement, rehabilitation or conversion to natural gas / LNG or other efficient fuels, the revival and enhancement of indigenous LPG production, the transparent procurement of fuel, and the installation of additional LNG receiving terminals, storage facilities, regasification infrastructure and pipeline connectivity, in accordance with law and Pakistan’s NDC commitments under the Paris Agreement;*

13. It is evident from the very essence of the above prayer clauses, as oozingly reflected, that the prayer laid is in the nature of fishing and roving inquiry qua the matters of technical and intricate details, which is

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not the mandate of the jurisdiction of this Court. The consistent use of the term ‘*crisis*’ might serve the purpose of some other vested interests or goals, however, the same cannot be treated as a ground for interference by this Court, particularly when the contents of the Petition in hand are devoid of merits and necessary details. While this Court is not inclined to direct such attributions of using this Petition as a contraption of achieving other purpose as neither any detailed inquiry is made in this regard nor an opportunity to render explanation is provided, nonetheless, it is imperative to note that this Court will always underscore the pursuit of sensationalized publicity as such actions undermines the integrity and importance of the relevant institutions, organizations and entities, which serves no one’s purpose at the end.

Prayer Clause ‘E’. *Restrain the Respondents from carrying out any unannounced, unscheduled, excessive or discriminatory load shedding in residential, commercial or industrial areas without prior public notice, a lawful published policy and transparent objective criteria, and further direct the Respondents to immediately install, maintain and operationalise alternative backup arrangements, including standby generators, solar photovoltaic systems, UPS systems and emergency power facilities, in all courts, tribunals, hospitals and other essential service departments to prevent the disruption of critical services;*

Prayer Clause ‘F’. *Direct the Respondents to devise, notify and implement a comprehensive emergency plan for the summer season, heatwave conditions, Ramazan, Sehr and Iftar hours, and examination season, with special protective measures for children, the elderly, patients, pregnant women, persons with disabilities and other vulnerable segments of society, and further direct the Respondents to consider and notify an objective and transparent adjustment, rebate, or compensation mechanism for consumers subjected to excessive unscheduled outages despite payment of bills, taxes, duties and inflated tariffs;*

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14. Again, these prayer clauses are an emblem of repetitive, vague, unsustainable and unsubstantiated pursuit with which this Constitutional Petition has been filed. The issue of non-maintainability of such reliefs has extensively been discussed in the preceding paragraphs of this order, therefore, these prayers are held as non-maintainable.

Prayer Clause ‘G’. Constitute an independent Commission, Committee or Task Force, comprising technical, financial and legal experts of known integrity, to examine the root causes of the recurring electricity and gas crisis, maladministration, circular debt, system losses, theft, irrational dispatch, delayed fuel procurement and failure to retire obsolete plants, and to fix responsibility upon delinquent officers, office-bearers and entities in accordance with law, with directions for follow-up action and periodic reporting to this Honourable Court;

15. The above prayer is also misconceived and untenable as it is well settled that it is not within the scope and jurisdiction of this Court under Article 199 of the Constitution to constitute independent commission(s)/task force or committee(s) for probing into the matters sought to be raised in the case in hand as these matters clearly fall within the authority and jurisdiction of the executive, if at all a case is made out as per the provisions contained in the relevant statutes. The reference may be made to Pakistan Commission of Inquiry Act, 2017 or the Punjab Departmental Inquiries (Powers) Act, 1958, which are relevant statutes for the purposes of appointment and constitution of the commission(s)/committee(s) and task force. This is apart from the mechanism and dispensations available in the special statutes relating to these sectors. If need be, reliance may be placed

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upon Section 27A of NEPRA Act, which empowers NEPRA to form an investigation committee to look into serious rules violations, systematic failures or fatal accidents.

***Prayer Clause ‘H’.** It may further be declared that the continued neglect, delay, maladministration, and defective policy-making in promoting, producing, transmitting, and effectively implementing indigenous and alternative energy sources in Pakistan, including LPG, biogas, coal gasification, renewable energy, and other suitable substitute fuels, has caused grave loss to the national economy, industry, domestic consumers, and public interest; therefore, responsibility be fixed upon the concerned officers, institutions, and persons, and action be taken against them strictly in accordance with law.*

***Prayer Clause ‘I’.** The Pakistan through the Ministry of Energy, Petroleum Division, Oil and Gas Regulatory Authority, and other concerned authorities may kindly be directed to place before this Honourable Court, within a stipulated period, a comprehensive policy aimed at reducing unnecessary dependence on costly production of electricity and promoting indigenous gas resources, LNG, LPG, alternative fuels, affordable power generation, and ensuring long-term national energy security.*

***Prayer Clause ‘J’.** A transparent inquiry, forensic audit, and legal proceedings may kindly be ordered against all responsible officers, past or present managements, or any person or entity whose negligence, collusion, corruption, incompetence, or mala fide conduct has caused financial loss of billions of rupees to the country.*

16. It is trite that technical and policy issues are beyond the jurisdictional domain of the High Court and High Court should not delve into highly technical and purely policy issues, which are better left to be dealt with by experts having relevant knowledge in the respective fields and competent authorities authorized by law to do so.¹¹ In view of findings rendered above,

¹¹ *National Engineering Services Pakistan [NESPAC] Pvt. Ltd. and others v. Kamil khan Mumtaz & others” (2018 SCMR 211*

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none of the reliefs claimed through these prayer clauses can be entertained or granted.

Prayer Clause ‘K’. Award any other relief, direction, order or writ that this Honourable Court may deem fit, appropriate, just and proper in the facts and circumstances of the case and in the larger interest of the public at large.

17. No case for grant of relief is made out.

18. For what has been discussed above, this petition is hereby **dismissed**. Since the Petitioner has filed frivolous and unsubstantiated Petition with an attempt to embroil the respondents in unnecessary litigation, which attempt has further utilized the valuable judicial resources and time of this Court, which resources and time are meant for dispensation of justice in lawfully filed cases/claims, therefore, the frivolous pursuits, such as the one in hand, are required to be curbed by imposing costs. Taking guidance from judgments reported as “Saleh Muhammad and another v. Mst. Mehnaz Begum and others” (2025 SCP 273), “Province of Punjab through Deputy Commissioner v. Zulfiqar Ali” (2024 SCMR 22), “Javed Hameed v. Aman Ullah” (2024 SCMR 89), “CDA through Chauirman v. Ahmed Murtaza” (2023 SCMR 61), “Qazi Naveed ul Islam v. District Judge, Gujrat and others” (PLD 2023 SC 298), “Commissioner Inland Revenue, LTO Karachi v. Packages Limited” (2022 SCMR 634), “Muhammad Akbar through L.Rs v. Major Tajjuddin through L.Rs” (2007 SCMR 140), “Iqbal Haider v. Federation of Paksitan” (1998 SCMR 1318) & “National Highway Authority through Chairman, Islamabad v. Messrs SAMBU Construction

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Co. Ltd. Islamabad and others” (2023 SCMR 1103) & “Qazi Naveed ul Islam v. District Judge, Gujrat and others” (PLD 2023 SC 298), the petitioner is hereby saddled with punitive cost of Rs.100,000/- to be deposited in the dispensary of the Lahore High Court Bar Association. The receipt in this regard shall be submitted before the Deputy Registrar (Judicial) of this Court within 45 days.

19. The order relating to imposition of cost shall remain stayed for a period of 30 days from today, enabling the petitioner to avail its remedy of appeal, if so advised.

(Khalid Ishaq)
Judge

Announced in open Court on 25.05.2026.

(Khalid Ishaq)
Judge

Signed on _____

(Khalid Ishaq)
Judge

Approved for Reporting.

(Khalid Ishaq)
Judge

Ahmed!